

enforced nor threatened to enforce the statute challenged as unconstitutional.” *Id.* at 11 (quoting *281 Care Comm. v. Arneson (Care Committee II)*, 766 F.3d 774, 797 (8th Cir. 2014) (quoting *McNeilus Truck & Mfg., Inc. v. Ohio ex rel. Montgomery*, 226 F.3d 429, 438 (6th Cir. 2000))). “Under this standard, and based on [the county attorneys’] uncontested affidavits,” the district court held that the “[p]laintiffs have not shown that [the county attorneys] are ‘about to commence proceedings’ against them.” *Id.* at 13 (quoting *Ex parte Young*, 209 U.S. at 156). The court acknowledged that the county attorneys’ declarations “say only that they have ‘no present intention’ to prosecute” but concluded that their failure to “disavow[] all future prosecutions does not mean that they are ‘about to commence proceedings’ against the [p]laintiffs.” *Id.* (quoting *Ex Parte Young*, 209 U.S. at 156).

The court also determined that the plaintiffs failed to show irreparable harm. It cited “the absence of threatened, much less imminent, enforcement by [the county attorneys]”; the plaintiffs’ failure to “seek a preliminary injunction until almost one year” after filing their complaint; and the fact that “the harm [p]laintiffs identify as being attributable to [the county attorneys] seems slight—not irreparable—when one considers that Minn. Stat. § 211B.32 authorizes any person to file a complaint alleging a violation of § 211B.02.” *Id.* at 14–15. Furthermore, the court concluded that “[t]he final two *Dataphase* factors do not change things.” *Id.* at 15.

II. Discussion

On appeal, the plaintiffs argue that the district court abused its discretion in denying their preliminary-injunction motion. First, they challenge the district court’s determination that they are not likely to prevail on their First Amendment claims because the county attorneys are entitled to Eleventh Amendment immunity. Second, they argue that the district court erred in determining that they failed to prove irreparable harm. “As to the remaining preliminary injunction factors,” they assert that “the district court did not view the balance-of-harm factor as it would apply to First Amendment freedoms” and failed to consider that “the public interest favors